

## Fulesar Ram v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 April 2022 · Writ-C No. 11214 of 2022 · WRIT - C No. - 11214 of 2022 · **Writ disposed with liberty to apply under Clause 6.5.**

### HEADNOTE

A consumer disputing the correctness of an electricity bill must follow the complete procedure in Clause 6.5 of the U.P. Electricity Supply Code, 2005. A writ seeking bill correction, restoration of supply, and decision of a representation is disposed of with liberty to apply under that clause.

### FACTUAL SUMMARY

Fulesar Ram petitioned the Allahabad High Court for a direction to respondent no. 2 to correct the electricity bill issued to him, restore electricity supply, and decide the representation or complaint made in that regard. The Standing Counsel submitted that if the petitioner was disputing the correctness of the bill, he had to apply in accordance with the procedure prescribed under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

bill correction

#### HOLDING

Where a consumer disputes the correctness of an electricity bill, Clause 6.5 of the U.P. Electricity Supply Code, 2005 prescribes the complete procedure for raising that dispute; a writ seeking correction of the bill, restoration of supply, and decision of a representation is disposed of with liberty to apply under that clause. ¶ 1

### PRINCIPLE TAGS

**clause-6.5-alternate-remedy-to-writ** Writ seeking bill correction, restoration of supply, and decision of a representation disposed with liberty to apply under Clause 6.5 instead of deciding the bill on the writ side. ¶ 1

**bill-correction-clause-6.5** Clause 6.5 is treated as the complete prescribed procedure for a consumer disputing the correctness of an electricity bill. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

relegated to Clause 6.5 ¶ 1

#### NOT DECIDED — RESTORATION OF ELECTRICITY SUPPLY

¶ 1

#### NOT DECIDED — MERITS OF THE PENDING REPRESENTATION OR COMPLAINT

¶ 1